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CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	HEARING RE: MOTION FOR AN ORDER TO SHOW CAUSE RE: APPOINTMENT OF GUARDIAN AD LITEM FOR PLAINTIFF AND CROSS-DEFENDANT BERTHA WONG BY BRUCE AUERBACH

Tentative Ruling: No tentative ruling, a hearing shall be conducted.

OSC re proof of service calendared for 7.02.26 is vacated

2.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	DEMURRER ON 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS DEBBIE CHAMBERLAIN, RODNEY CHAMBERLAIN, AND WONG FARMS, LLC JOINDER OF CROSS-DEFENDANTS WONG AND WEINGARTEN

Tentative Ruling: A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (CCP § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly pleaded, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley v. Kattelman* (1994) 8 Cal. 4th 666, 672.) However, a demurrer does not admit contentions, deductions or conclusions of fact or law. (*Daar v. Yellow Cab Company* (1967) 67 Cal.2d 695, 713.) If the complaint fails to state a cause of action, the court must grant the plaintiff leave to amend if there is a reasonable possibility that the defect can be cured by amendment. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.)

Direct claims of Desert Hydroponics:

Cross-Complainants do not dispute that the claims alleged in the Third Amended Cross-Complaint are direct claims purportedly brought by Desert Hydroponics, LP, by itself and not derivative claims brought by Bruce Auerbach. As explained by Cross-Defendants, they could not be, because the Third Amended Cross-Complaint must be filed in the name of the partner and name of the partnership itself as a cross-defendant to properly allege derivative claims, neither of which was done here. (See *Everest Investors 8 v. McNeil Partners* (2003) 114 Cal.App.4th 411, 425.) Accordingly, the Third Amended Cross-Complaint only includes direct claims alleged against Cross-Defendants, and any arguments that apply to derivative claims rather than direct claims are inapposite and are disregarded.

Cross-Complainants contend that the direct claims alleged in the Third Amended Cross-Complaint by Desert Hydroponics should be permitted because “the Third

Amended Cross-Complaint does not admit that BERTHA WONG and IRENE WEINGARTEN are current general partners” and therefore, Desert Hydroponics can properly assert the claims alleged in the Third Amended Cross-Complaint without their approval or consent. However, contrary to Cross-Complainant’s argument, both the Third Amended Cross-Complaint and Second Amended Cross-Complaint include allegations confirming that Bertha Wong and Irene Weingarten possess general partnership interests in Desert Hydroponics. As the court previously noted in the order on 2.24.26 sustaining the demurrer of the Second Amended Cross-Complaint, Paragraph 12 acknowledged that “[a]s of today, the ownership interests remain Wong, Weingarten, Arimco, and Bruce, all with 25% interest, as reflected in company generated K-1 forms.” Moreover, even if Cross-Complainants’ post hoc excuse that these allegations were “written in error” were given the benefit of the doubt, the Second Amended Cross-Complaint also clearly stated that Ms. Wong and Ms. Weingarten “remain” 50% owners, and the Third Amended Cross-Complaint offers no facts showing that Ms. Wong and Ms. Weingarten do not “remain” general partners.

The above admissions are reinforced in ¶18 of the Third Amended Cross-Complaint which states that in 2004 (after both Ed Wong and Ruben Weingarten had passed away), “[t]he partners, consisting of the Arimco Investors, Bruce, and Ms. Weingarten agreed to a one-year lease that was prepared and sent to [Debbie Chamberlain] for the nominal sum of one dollar.” (Third Amended Cross-Complaint, ¶ 18). That lease, which is attached as Exhibit A to the Second Amended Cross-Complaint (RJN, Ex. 1.), specifically identifies Ms. Wong and Ms. Weingarten on the signature page of the document as “Partners” in Desert Hydroponics who are signing the lease on behalf of Desert Hydroponics. Having previously attached this document as an exhibit to the Second Amended Cross-Complaint, Cross-Complainants cannot now seek to manufacture a “disputed fact” by adding new, factually unsupported allegations contradicting the exhibit that they previously attached to the SAXC and relied upon. (See *George v. eBay, Inc.* (2021) 71 Cal.App.5th 620, 628 (attachments to a complaint are assumed to be true and take precedence over any conflicting allegations in a complaint, citing *Brakke v. Economic Concepts, Inc.* (2013) 213 Cal.App.4th 761, 767–768). Thus, these prior admissions set forth in both the Third Amended Cross-Complaint and Second Amended Cross-Complaint conclusively establish Ms. Wong and Ms. Weingarten’s ownership interests in Desert Hydroponics.

Corporations Code § 15904.06(a):

Corporations Code section 15904.06(a) provides that “[e]ach general partner has equal rights in the management and conduct of the limited partnership’s activities. Except as expressly provided in this chapter, any matter relating to the activities of the limited partnership may be exclusively decided by the general partner or, if there is more than one general partner, by a majority of the general partners.” As such, Section 15904.06(a) stands for the proposition that each general partner has rights in the partnership’s management activities, and that partnership actions must be authorized by a majority of the general partners.

Cross-Complainants make an argument that Corporations Code section 15904.06(a) “does not say that alleged wrongdoers, adverse fiduciaries, or persons whose status is disputed may block the partnership from protecting its property by withholding consent.” (See Opposition, page 5). As explained by Cross-Defendants, Cross-Complainants’ argument miscomprehends the purpose of the statute and has no

support from the statute itself. The fact that Bertha Wong and Irene Weingarten, by virtue of their 50% ownership interests as general partners, may oppose or prevent Desert Hydroponics from taking actions that only Bruce Auerbach wants to engage in is precisely what is intended by the statute. As 50% general partners, they are fully entitled to participate in decisions regarding the partnership in accordance with their commensurate ownership interests. To the extent any disagreement among the general partners may result in a deadlock, such a deadlock is properly resolved by following the terms of the partnership agreement and relevant partnership statutes.

In the Opposition, Cross-Complainants also argue that the demurrers should be overruled because “the [Third Amended Cross-Complaint] expressly alleges demand futility.” (See Opposition, page 5.) This argument is inapposite because demand futility only applies to derivative actions, not actions such as this one which only allege direct claims. Because demand futility is only a pleading requirement for derivative claims, it is wholly in determining whether the Third Amended Cross-Complaint has properly alleged direct claims for purposes of ruling on the Demurrer.

Status of Bertha Wong and Irene Weingarten’s status as general partners:

In the Opposition, Cross-Complainants cite to Corporations Code section 15907.04 and claim that “[t]hose provisions do not establish, on demurrer, that BERTHA WONG and IRENE WEINGARTEN automatically became current general partners of Desert Hydroponics with management-veto rights” and that “[i]t does not provide that a surviving spouse automatically becomes a general partner with authority to veto partnership litigation.” (Opposition, pages 6-7.) However, the Third Amended Cross-Complaint (and Second Amended Cross-Complaint) already admit that Bertha Wong and Irene Weingarten became general partners in Desert Hydroponics after their husbands’ deaths and therefore, this matter is a settled issue. As discussed, Ms. Weingarten’s ongoing ownership interest in Desert Hydroponics after her husband’s death is confirmed in Paragraph 18 of the Third Amended Cross-Complaint, which states that in 2004, “[t]he partners, consisting of the Arimco Investors, Bruce, and Ms. Weingarten agreed to a one-year lease that was prepared and sent to [Debbie Chamberlain] for the nominal sum of one dollar.” (Third Amended Cross-Complaint, ¶ 18.). Furthermore, Ms. Wong and Ms. Weingarten’s ongoing ownership interest also is confirmed in the lease agreement itself, which identifies both Ms. Wong and Ms. Weingarten as “Partners” of Desert Hydroponics. (Ex. A to Second Amended Cross-Complaint, also attached as Ex. 1 to RJN.). Both of these events took place after Ed Wong and Ruben Weingarten had passed away. As a result, there is no dispute that Ms. Wong and Ms. Weingarten became general partners in Desert Hydroponics.

Corporation Code section 15907.04 provides that when a partner dies, his spouse or other personal representative exercises the same rights as a partner in the partnership. (See Corp. Code § 15907.04 (“If a partner dies, the deceased partner’s personal representative or other legal representative may exercise the rights of a transferee as provided in Section 15907.02 and, for the purposes of settling the estate, may exercise the rights of a current limited partner under Section 15903.04.”); see also, Fmr. Corp. Code § 15675(a) (former statute under CRLPA providing that “[i]f a limited partner who is an individual dies . . . , the partner’s executor, administrator, guardian, conservator, or other legal representative may exercise all the partner’s rights for the purpose of settling the partner’s estate or administering the partner’s property.”). As argued by Cross-

Defendants in their reply, the statute provides that Ms. Wong and Ms. Weingarten became partners in Desert Hydroponics by operation of law.

Statute of Limitations:

In its February 24, 2026 ruling, the court sustained the demurrers to the Second Amended Cross-Complaint based upon the statute of limitations. The court found that the facts alleged in the Second Amended Cross-Complaint showed Desert Hydroponics had notice of Cross-Defendants' continued possession of the subject property no later than 2005:

"In the SAXC, Cross-Complainants allege a cause of action for Ejectment against Cross-Defendants. (SAXC at ¶¶45-53). The statute of limitations for an ejectment claim is five years. (See CCP § 318.) Here, in the SAXC, the Cross-Complainants admit the following facts:

- The lease was entered into on October 1, 2004 (SAXC at ¶18);
- The lease expired on September 30, 2005 (SAXC at ¶18);
- Cross-Defendants' continued possession of the subject farmland after the expiration of the lease was known to Bertha Wong and Irene Weingarten "for a period of approximately 19 years beyond the original authorized one-year lease term..." (SAXC at ¶ 31); and
- Bertha Wong and Irene Weingarten were (and are) general partners of Desert Hydroponics (SAXC at ¶12) and therefore, Desert Hydroponics had notice of Cross-Defendants continued possession immediately following the expiration of the one-year lease in 2005.

Based these allegations in the SAXC, the five-year statute of limitations period began running on October 1, 2005 and expired on October 1, 2010 – over a decade before the action was brought. The Ejectment cause of action is time-barred. For the same reasons, the SAXC's related 2nd (Accounting), 3rd (Unjust Enrichment) and 4th (Declaratory Relief) causes of action, which are derivative of the same alleged possession and use beginning in 2004-2005, are time-barred as well."

Even if Cross-Complainants had established standing to bring the subject cross-claims (see above discussion), the causes of action in the Third Amended Cross-Complaint are barred by the statute of limitations, and is an independent ground to sustain this demurrer.

As noted by Cross-Defendants, in the Third Amended Cross-Complaint, Cross-Complainants allege a cause of action for Ejectment against Cross-Defendants. (¶¶43-50). The statute of limitations for an ejectment claim is five years. (CCP § 318.) The Third Amended Cross-Complaint adds a new sixth cause of action for "Wrongful Occupation of Real Property." The statute of limitations for that new cross-claim is three years. (CCP § 338(b) (three-year statute of limitations for an action for trespass or injury to real property).

In ¶46 of the Second Amended Cross-Complaint, it was previously alleged that: "Cross-Complainant DESERT HYDROPONICS LP brings this claim for ejectment because it was, at all relevant times mentioned below, entitled to possession of the real property commonly know[n] as the ten-acre parcel located at 90300 Avenue 70, Mecca, California, which includes the farmhouse situated thereon ("Subject Property"), subject to a one-year lease." (Second Amended Cross-Complaint, ¶46.) These allegations supported the Court's ruling that the statute of limitations began running in 2005. Cross-Complainants have not omitted these allegations of having been entitled to possession "at all relevant times mentioned below" and instead state in a conclusory fashion that "now that DESERT HYDROPONICS LP legally owns the Property as of August 25, 2022, it has

standing to bring this cause of action for Ejectment, accruing as of that date against DEBBIE CHAMBERLAIN, RODNEY CHAMBERLAIN, and WONG FARMS, LLC.” (Third Amended Cross-Complaint, ¶ 44.)

In ¶31 of the Second Amended Cross-Complaint it was previously alleged that “Cross-Defendants breached their fiduciary duties to Cross-Complainants by allowing and/or permitting Cross-Defendants DEBBIE CHAMBERLAIN and RODNEY CHAMBERLAIN to possess and operate the farmland for a period of approximately 19 years beyond the original authorized one-year lease term, while Cross-Defendant IRENE WEINGARTEN conspired with BERTHA WONG and her daughter to actively conceal such activity from BRUCE AUERBACH.” (Second Amended Cross-Complaint, ¶31.) Now, in the Third Amended Cross-Complaint, Cross-Complainants omit these allegations which show that Bertha Wong and Irene Weingarten’s (i.e., Desert Hydroponics’) knowledge of Cross-Defendants’ continued possession of the subject property after the expiration of the lease “for a period of approximately 19 years beyond the original authorized one-year lease term” and instead allege, again in contradictory and conclusory fashion, that “[s]ince August 25, 2022, Cross-Defendants breached their fiduciary duties to BRUCE AUERBACH and Arimco Investors by allowing and/or permitting Cross-Defendants DEBBIE CHAMBERLAIN and RODNEY CHAMBERLAIN, daughter and son-in-law of BERTHA WONG, to possess and operate the farm on the Property. . . .” (Third Amended Cross-Complaint, ¶32.)

Cross-Complainants’ attempted use of August 25, 2022 as the supposed date upon which the applicable statutes of limitations began to run directly conflicts with the admissions in the Second Amended Cross-Complaint that Desert Hydroponics, through its general partners, Bertha Wong and Irene Weingarten, was fully aware of Cross-Defendants’ continued possession of the ten-acre property in 2005. Cross-Complainants cannot plead around bad facts that they themselves alleged by omitting those facts in amended pleadings and alleging contradictory facts instead. (See *McKell v. Washington Mutual Inc.* (2006) 142 Cal.App.4th 1457, 1491; *Womack v. Lovell* (2015) 237 Cal.App.4th 772, 787.) These are sham allegations.

5th Cause of Action for ejectment and 6th Cause of Action for Wrongful Occupation of Real Property:

Cross-Complainants contend that the fifth cause of action for ejectment and sixth cause of action for wrongful occupation are timely because the statute of limitations only began running on August 25, 2022, the date upon which the quiet title judgment to the real property was entered. However, the claims in the Third Amended Cross-Complaint which are the subject of this Demurrer are wholly dependent upon a finding that Desert Hydroponics was authorized to bring them in the first place. As discussed, the admitted facts show that there has been no such authorization and therefore the direct claims in the Third Amended Cross-Complaint that have been purportedly brought by Desert Hydroponics are subject to demurrer.

Also, there has been no wrongful possession of the subject real property by Cross-Defendants, since the general partners of Desert Hydroponics (i.e., Bertha Wong and Irene Weingarten) have known about and consented to Cross-Defendants’ continued use and occupation of the property since 2004. Thus, irrespective of when the statute of limitations began to run on those claims, Cross-Complainants cannot allege valid ejectment or wrongful occupation of real property claims in any event.

Cross-Complainants' argument that the statute of limitations did not begin to run until August 25, 2022, when Desert Hydroponics obtained formal title to the property, is incorrect as a matter of law. Both claims for ejectment and claims for wrongful possession are based upon possessory interests in real property, not title. (See *Craviotto v. All Persons* (1928) 93 Cal.App. 346, 352 ("Generally speaking, the action of ejectment is merely a possessory action, and is confined to those cases where the claimant has a possessory title; that is to say, a right of entry upon the land."); *Lightner Mining Co. v. Lane* (1911) 161 Cal. 689, 694-95 ("It is a well-settled proposition that the proper party plaintiff in an action for trespass to real property is the person in actual possession. No averment of title in plaintiff is necessary.")). Accordingly, the date upon which title actually passed to Desert Hydroponics is irrelevant for purposes of calculating the statute of limitations, and the statute of limitations for these possessory claims began running in 2005.

2nd Accounting, 3rd Unjust Enrichment and 4th Declaratory Relief Causes of Action:

Cross-Complainants contend that these claims raise factual and equitable issues unsuitable for demurrer. However, these claims (which are alleged by Desert Hydroponics) are dependent upon a finding that Desert Hydroponics was authorized to bring them in the first place. As discussed, this is not the case here.

Cross-Defendants' Requests for Judicial Notice GRANTED. The court takes judicial notice of the following:

1. Second Amended Cross-Complaint and attached exhibits CVPS 2402052
2. This Court's ruling on 2.24.26 regarding the demurrer to the Second Amended Cross-Complaint CVPS 2402052

Cross-Defendants Bertha Wong and Irene Weingarten Demurrer via Joinder; as to the 2nd, 3rd and 4th Causes of Action, the Demurrer is SUSTAINED without leave to amend.

Cross-Defendants Debbie Chamberlain, Rodney Chamberlain and Wong Farms, LLC Demurrer as to the 2nd, 3rd, 4th, 5th and 6th Causes of Action, SUSTAINED, without leave to amend.

*The court notes that the motion by Cross-Defendants Debbie and Rodney Chamberlain and Wong Farms LLC was a demurrer for the 2nd-6th causes of action and ruled on those causes, despite the proposed order only requesting the 2nd-5th causes of action.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2402052	WONG VS AUERBACH	DEMURRER ON 3RD AMENDED CROSS-COMPLAINT OF BRUCE AUERBACH BY CROSS-DEFENDANTS BERTHA WONG AND IRENE WEINGARTEN

Tentative Ruling:

Statute of Limitations:

Paragraph 18 of The Cross-Complaint and Paragraph 19 of the First Amended Cross-Complaint and the Second Amended Cross-Complaint state the same allegation: